# Enforcement Guide

*Practical steps after obtaining a County Court Judgment*

MONEY CLAIM - POST-JUDGMENT

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|---|---|
| CLAIMANT: | **Alice Landlord** |
| DEFENDANT: | **Tom Tenant** |
| CLAIM AMOUNT: | **£2944.81** |

**Important Notice:** This guide explains the main enforcement routes after judgment, but it is not a substitute for advice on the facts of your own case. Enforcement only works if the defendant has wages, funds, property, or other assets you can realistically reach.

## Introduction

Getting judgment is an important step, but it does not guarantee payment on its own. If the defendant still does not pay within the time allowed by the court, you need to choose an enforcement route that matches what you know about their finances and assets.

This guide explains the main enforcement methods available in England, what each one is for, the typical court fee, and how to decide which route is worth trying first.

### Your selected enforcement preferences

Based on your answers, these are the methods you said were most relevant to the case:

- **Attachment of Earnings** - deductions from wages
- **Third Party Debt Order** - bank account or third-party funds

## Before you spend more money on enforcement

### Checklist before you proceed

- Wait at least **14 days** from judgment unless the order says otherwise
- Check whether the defendant has applied for time to pay or filed an appeal
- Gather what you know about wages, bank accounts, vehicles, property, or other reachable assets
- Ask whether the defendant looks able to pay anything at all, because enforcement with no realistic target can waste more money
- Be ready to pay the court fee up front even though some costs may later be recoverable

## Main enforcement methods

The main methods available after a County Court Judgment are set out below.

### 1. Attachment of Earnings Order

**What it is:** An order telling the defendant's employer to deduct money from wages and send it through the court toward the judgment debt.

**When it is usually worth considering:**

- The defendant is employed rather than self-employed
- You know where they work
- You want regular deductions rather than a single enforcement visit

**Advantages:**

- Can produce steady payments over time
- Usually straightforward once the employer is identified
- Often a sensible first route where the defendant has stable employment

**Risks or limits:**

- It does not work for self-employed defendants
- Deductions may be modest if income is low
- If the defendant changes jobs, the order may need to be revisited

**Court fee:** £110

**How to apply:** Complete form N337 and file it with the court that entered judgment.

### 2. Warrant of Control

**What it is:** An order allowing enforcement agents to attend the defendant's address, take control of suitable goods, and use them toward the debt.

**When it is usually worth considering:**

- You know where the defendant lives or trades from
- You believe there are saleable goods available
- The debt level makes a County Court warrant proportionate

**Advantages:**

- Can put immediate pressure on the defendant
- Does not depend on knowing an employer or bank
- Can be effective where goods of value are clearly present

**Risks or limits:**

- Many defendants have few goods worth taking
- Some items are protected from seizure
- Goods may already be missing, encumbered, or not worth enough to cover the debt

**Court fee:** £77 for claims up to £600; £110 for claims over £600

**How to apply:** Complete form N323 and file it with the court that entered judgment.

> **Note:** For debts over £5,000, a transfer to the High Court may be the better enforcement route. That usually means applying for a Writ of Control through form N293A.

### 3. Third Party Debt Order

**What it is:** An order freezing money held for the defendant by a bank or other third party and, if the court allows it, paying that money toward the judgment debt.

**When it is usually worth considering:**

- You have reliable information about the defendant's bank or another source holding money for them
- You want to target funds rather than goods or wages
- The defendant appears to have cash available but has still not paid

**Advantages:**

- Can be very effective if funds are present at the right time
- May lead to quick recovery
- Can bring matters to a head quickly once the account is frozen

**Risks or limits:**

- You need enough information to identify the right bank connection
- The account may not contain enough money when the order lands
- Some funds may be protected or harder to reach than expected

**Court fee:** £110

**How to apply:** Complete form N349 and file it with the best bank details you have.

### 4. Charging Order

**What it is:** An order securing the judgment debt against the defendant's property or land so the debt sits against that asset.

**When it is usually worth considering:**

- The defendant owns property
- The debt is substantial enough to justify the extra step
- You can wait for a longer-term recovery route if immediate payment is unlikely

**Advantages:**

- Places the debt against a significant asset
- May encourage payment or settlement
- Can preserve your position if the property is later sold or refinanced

**Risks or limits:**

- You may still wait a long time for recovery
- Existing mortgages and prior charges may reduce what is available
- An order for sale is a separate and more serious step, and it is not granted automatically

**Court fee:** £110 for the interim charging order, plus any later fees

**How to apply:** Complete form N379 and support it with evidence that the defendant owns the property in question.

### 5. Order to Obtain Information

**What it is:** An order requiring the defendant to attend court and answer questions on oath about wages, assets, debts, and ability to pay.

**When it is usually worth considering:**

- You do not know enough about the defendant's finances to choose an enforcement route confidently
- You suspect there are wages, property, or accounts but need more detail
- The defendant has ignored requests for payment

**Advantages:**

- Can give you better information before spending more on enforcement

- Helps you choose the right next application
- Shows the court process is continuing even where payment has stalled

**Risks or limits:**

- It does not itself recover money
- The answers still need to be tested against what you already know
- It adds another step before actual recovery action

**Court fee:** £55

**How to apply:** Complete form N316 and file it with the court.

## Fees and costs

| Method | Court fee | Other likely cost | Recoverable? |
|---|---|---|---|
| Attachment of Earnings | £110 | Usually none | Often yes if enforcement succeeds |
| Warrant of Control (up to £600) | £77 | Agent fees may arise | Partly |
| Warrant of Control (over £600) | £110 | Agent fees may arise | Partly |
| Third Party Debt Order | £110 | Usually none | Often yes if funds are recovered |
| Charging Order | £110 | Land Registry and later application costs may apply | Sometimes, depending on outcome |
| Order to Obtain Information | £55 | Usually none | Potentially |

## How to choose the right route

1. **Start with what the defendant actually has.**
   Wages, bank funds, goods, and property each point toward a different enforcement method.
2. **Do not spend fees blindly.**
   The question is not just whether you can enforce, but whether the chosen method has a realistic chance of recovery.
3. **Use information first if the picture is unclear.**
   If you do not know enough about the defendant's finances, an Order to Obtain Information may save wasted applications later.
4. **Review the result quickly.**
   If one route fails but fresh information comes in, another route may still be justified.

## Practical next steps

Based on your claim for **£2944.81** against Tom Tenant, the usual order is:

1. **Wait 14 days** to see whether the judgment is paid voluntarily
2. **Send a short final demand** if payment still has not arrived

3. **If you still do not know enough about the defendant's finances,** consider an Order to Obtain Information
4. **Choose the enforcement route that matches what the defendant actually has,** whether wages, bank funds, goods, or property
5. **Review the result promptly** and decide whether a second route is justified

## Important warnings

**Do Not Harass the Defendant:** Keep all contact measured and lawful. Do not threaten, harass, or try to recover the debt outside the proper court process.

**Insolvency Risk:** If the defendant goes bankrupt or enters an IVA, enforcement may stop and you may need to prove in the insolvency instead.

## Further resources

- **GOV.UK enforcement guidance:**
  `https://www.gov.uk/make-court-claim-for-money/enforce-a-judgment`
- **Court forms:**
  `https://www.gov.uk/government/collections/civil-and-family-court-forms`
- **Citizens Advice:**
  `https://www.citizensadvice.org.uk`
- **Money Claim Online:**
  `https://www.moneyclaim.gov.uk`

*This guide is practical support for post-judgment enforcement. If recovery is likely to be contested or complicated, independent legal advice may still be worthwhile.*